

Under the totality of these circumstances, Shipley was the prevailing party against both Karwoski and Schram. See Code of Civil Procedure section 1032(4).

2. CU0002107 Sheng Wang Chen vs. Federick Boey, et al.

Plaintiff/Cross-Defendant's March 3, 2026, motion for attorney's fees is granted in part.

Jurisdiction to Consider Attorney's Fees Given Pendency of Appeal

Defendants/Cross-Complainants "preserve" their position that this Court is divested of jurisdiction to consider the motion for attorney's fees given the pendency of an appeal of the Court's December 12, 2025, order granting Plaintiff/Cross-Defendant's motion to strike in part. The Court is not persuaded.

First, Defendants/Cross-Complainants filed a May 14, 2026, request for a stay, but then did not appear on the scheduled hearing date. The matter was removed from calendar without prejudice. See 5/15/26 Minute Order. No motion for a stay was duly filed by defendants thereafter and none is pending.

In any event, no stay would be required.

As a general rule (the automatic stay rule), the perfecting of an appeal automatically stays proceedings in the trial court both upon the judgment or order appealed from, and upon the matters embraced therein or affected thereby, including enforcement of the judgment or order. See generally Eisenberg et al., Cal. Practice Guide: Civil Appeals and Writs (The Rutter Group 1999) ¶¶ 7:1 to 7:2, p. 7-1. The automatic stay rule is codified in section 916, subdivision (a) which provides in part: "*Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order*" (Italics added.)

The purpose of the automatic stay rule is "to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The rule prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it. [Citation.]" *Elsea v. Saberi* (1992) 4 Cal.App.4th 625, 629.

Dowling v. Zimmerman (2001) 85 Cal.App.4th 1400, 1428 (parallel citations and parentheses omitted).

Here, an award of attorney's fees will not in any way render the appeal futile or affect the appealed judgment. Of course, should the Court of Appeal disagree with all or part of the Court's anti-SLAPP decision itself, the Court may be required to reexamine the question of who

prevailed and the award of attorney's fees.

Legal Standard for Prevailing Party and Attorney's Fees

"Section 425.16, subdivision (c) provides that 'a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs.' Under this provision, 'any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.' " *Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 338. "[A] party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of a trial court." *Id.* at 340.

At bar, Plaintiff/Cross-Defendant's anti-SLAPP motion was granted as to the second and third causes of action in the Cross-Complaint, but not the first cause of action. Plaintiff/Cross-Defendant succeeded in removing two of the three claims. These results were both significant and a practical benefit to the moving party. Plaintiff/Cross-Defendant was a prevailing party.

Calculation of attorneys' fees is committed to the discretion of the trial court. *PLCM Group v. Drexler* (2000) 22 Cal.App.4th 1084, 1095-1096. The calculation must be based on "a computation of time spent on a case and the reasonable value of that time." For purposes of the calculation, "[t]he reasonable hourly rate is that prevailing in the community for similar work." *Id.* The court is not bound by the evidence and argument provided by the party seeking the fees. Under California law, "[t]he court has a duty, independent of any objection, to assure that the amount and mode of payment of attorney fees are fair and proper, and may not simply act as a rubberstamp for the parties' agreement." *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 555. "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 436 (citations omitted).

Generally, the standard for calculating an award of attorney fees begins with the 'lodestar,' a calculation obtained by multiplying the hours worked by each person entitled to compensation by a reasonable hourly rate for those services. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. The lodestar figure may then be adjusted, based on consideration of specific factors to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* Among the factors considered in adjusting the lodestar figure are: (1) the novelty and difficulty of the questions involved, and the skill demonstrated in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award. *Press v. Lucky Stores, Inc.* (1983) 34 Cal.3d 311, 322. The approach anchors the court's analysis to an objective determination of the value of the attorney's services, ensuring the amount awarded is not arbitrary. *Id.* Ultimately, the trial court has broad discretion

to determine the value of professional services rendered in its court. *Vo v. Las Virgenes Municipal Water Dist.* (2000) 79 Cal.App.4th 440, 446. A declaration attesting to the accuracy of the fee bill is entitled to a presumption of credibility. *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.

In the declaration in support of the motion, Plaintiff/Cross-Defendant Chen requests fees and costs as follows:

- Attorney X. Young Lai: billed \$28,400 (56.8 hours billed at \$500/hour) (66.8 hours were billed, and a deduction of 10 hours was made for the declaratory relief work), and requests a 2.0 multiplier under the lodestar method, resulting in fees of \$56,800.
- Attorney X. Young Lai: billed \$11,850 (17.7 hours at \$500/hour drafting motion and 6 hours of anticipatory billing at \$500/hour).
- \$120 in costs for filing the anti-SLAPP motion and the present motion.

The Court has reviewed the declaration of counsel Lai and the billing ledger attached thereto and presided over the underlying litigation. The Court, cognizant of the prevailing attorney's fees in this county for work of this nature, finds that counsel Lai is entitled to compensation at a reasonable rate of \$400.00 per hour.

Turning next to whether the number of hours incurred by the firm is reasonable, the Court has carefully reviewed the billing ledger attached to the declaration of counsel Lai. The Court finds that the 56.8 hours claimed for the underlying anti-SLAPP motion and the 23.7 hours claimed for the fees motion to be unreasonable and excessive in light of the nature and complexity of the issues presented. A reduction is also appropriate because Plaintiff/Cross-Defendant prevailed only as to two of the three claims. The Court shall reduce the billed/anticipated to be billed hours by 50%. The Court finds that 45.25 hours of time is appropriate, all things considered.

The Court, thus, concludes that Plaintiff/Cross-Defendant is entitled to total fees of \$18,100.00 as well as \$120.00 in costs.

3. CU0002367 Diana Dentoni vs. Patrick Gilmore

Plaintiff apparently reserved a date for the filing of a motion, presumably for leave to file a first amended complaint. Pursuant to Code of Civil Procedure section 1005(b), Plaintiff was required to file and serve a notice of motion and motion at least sixteen court days before the hearing. Moreover, the period of notice is extended by additional days depending on the method of service. *See, e.g.,* Code Civ. Proc. §§ 1005, 1010.6(a)(3). Here, the April 30, 2026, notice of motion is deficient as it does not include a hearing date. The May 5, 2026, notice is also deficient as it references a May 8, 2026, hearing date. The matter is withdrawn from calendar. No motion is set for May 29, 2026 and no action shall be taken in connection with the filed motion unless and until it is duly noticed for hearing and served.